

# STATE OF NEW YORK

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9334--A

2025-2026 Regular Sessions

## IN ASSEMBLY

December 10, 2025

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Introduced by M. of A. SIMPSON -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT transferring certain state property located in the town of Queensbury to the county of Warren

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act but notwithstanding  
2 any other provision of law to the contrary, the commissioner of general  
3 services is hereby authorized, subject to the consent of the New York  
4 state division of military and naval affairs, to transfer and convey to  
5 the county of Warren, the state land described in section two of this  
6 act, owned by the New York state division of military and naval affairs  
7 located at tax map parcel number 295.19-3-70, in the town of Queensbury  
8 in the county of Warren, declared to be stockpiled property by the New  
9 York state division of military and naval affairs. The transfer and  
10 conveyance of the land described in section two of this act shall be a  
11 gift to such county.

12 § 2. All that certain plot, piece or parcel of land situate, lying and  
13 being in the Town of Queensbury, County of Warren, State of New York,  
14 described as follows:

15 Beginning at the point of intersection of the easterly boundary of Fox  
16 Farm Road with the common division line between the property of the  
17 County of Warren (reputed owner) on the North and the properties of  
18 Floyd & Lavancha Smith (reputed owners), Edward & Elinor McCullough  
19 (reputed owners), John C. & Barbara Tremblay (reputed owners), Richard  
20 S. & Alice A. Winters (reputed owners), Vivian Farr (reputed owner) and  
21 Henry J. Sleight (reputed owner) on the South, said point being 42±  
22 feet distant northerly measured at right angles from Station "P" 0+27±

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD13048-03-6

1 of the hereinafter described survey baseline for the construction of the  
2 Warren County Civil Defense Site; then easterly along the last mentioned  
3 common division line 688 feet to a point 20 feet distant easterly meas-  
4 ured at right angles from Station "P" 7+75± of said baseline; then North  
5 15°-04' East, 340 feet to a point at Station "P" 11+15 of the back  
6 tangent of said baseline produced ahead; thence North 75°-08' West, 582±  
7 feet to a point on the first mentioned easterly boundary of Fox Farm  
8 Road, said point being 15 feet distant southerly measured at right  
9 angles from Station "P" 16+46± of said baseline; thence southerly along  
10 the last mentioned easterly road boundary 357± feet to the point of  
11 beginning, being 4.956 acres more or less.

12 The above mentioned survey baseline is a portion of the survey base-  
13 line for the construction of the Warren County Civil Defense Site, as  
14 shown on a map on file in the Office of the State Department of Public  
15 Works and described as follows:

16 Beginning at Station "F" 0+00; thence North 33°-06'-10" East to  
17 Station "F" 11+00. ALSO, beginning at Station "P" 0+00 (?) Station F  
18 4+67.71 (POL); thence South 71°-33'-45" East to Station "P" 6+95; thence  
19 North 18°-26'-21" East to Station "P" 10+65; thence North 68°34'-19"  
20 West to Station "P" 14+00; thence North 68°-56'-48" West to Station "P"  
21 16+56.11 Station "F" 8+85.18 (POF).

22 All bearings referred to True North at the 74°-20' Meridian of West  
23 Longitude.

24 EXCEPTING and RESERVING all that certain piece or parcel of land situ-  
25 ation, lying and being in the Town of Queensbury, County of Warren  
26 conveyed by THE PEOPLE OF THE STATE OF NEW YORK to the TOWN OF QUEENS-  
27 BURY by Liber 860 of Deeds at page 306 for highway purposes, more  
28 particularly bounded and described as follows:

29 BEGINNING at the southeast corner of the lands conveyed to The People  
30 of the State of New York by deed dated February 17, 1967 and recorded in  
31 Book 479 of Deeds at page 32 on February 27, 1967; running thence along  
32 the southerly bounds thereof the following two courses and distances:

33 1. North 65°02'40" West, distance of 39.91 feet;  
34 2. North 65°04'40" West, distance of 25.01 feet to the northwest  
35 corner of Farr Lane, a Town Road;  
36 thence running through the lands of the grantor herein the following two  
37 courses and distances;

38 1. North 25°56'22" East, a distance of 180.77 feet;  
39 2. North 71°14'48" East, a distance of 85.89 feet to the lands of J.  
40 Buckley Bryan, Jr.; thence running along said lands South 25°01'15"  
41 West, a distance of 240.08 feet to the point and place of beginning,  
42 containing 0.30 acre of land, more or less.

43 Bearings given in the above description refer to the magnetic meridian  
44 as of May 1985.

45 BEING a portion of the premises acquired by The People of the State of  
46 New York from Warren County by Deed dated February 17, 1967 and recorded  
47 in the Warren County Clerk's Office in Liber 479 of Deeds at page 32 on  
48 February 27, 1967.

49 § 3. The plot description in section two of this act is not intended  
50 to be a legal description but is intended to identify the parcel to be  
51 conveyed. As a condition of the transfer, Warren County may submit to  
52 the commissioner of general services, for such commissioner's approval,  
53 an accurate survey and description of the lands to be conveyed, which  
54 may be used in the conveyance thereof.

55 § 4. The office of general services shall not transfer or convey the  
56 aforesaid land unless application is made to the office of general

1 services by Warren County within 1 year after the effective date of this  
2 act. Such application shall be in the form of a resolution setting  
3 forth a comprehensive statement approved by its managing board acknowl-  
4 edging and accepting the use restrictions set forth in section five of  
5 this act.

6 § 5. The transfer and conveyance made pursuant to this act shall be  
7 subject to the following use restrictions and reverter:

8 (a) The land described in section two of this act shall be used exclu-  
9 sively for the public purposes set forth by the county of Warren,  
10 including, but not limited to, agency training, emergency communi-  
11 cations, operational deployments, emergency response, and secure stor-  
12 age. Nothing in this section shall restrict the county of Warren from  
13 cooperating and coordinating with other municipalities;

14 (b) The conveyance of the land described in this act shall contain a  
15 covenant and restriction requiring that the land be used for the  
16 purposes set forth in subdivision (a) of this section. In the event the  
17 premises are not accepted and/or used for such purposes, it shall revert  
18 to the state of New York;

19 (c) The closing shall be completed within 3 years after the effective  
20 date of this act; and

21 (d) This property shall not be transferred to or conveyed at any time  
22 to any owner other than the county of Warren or the state of New York.

23 § 6. The conveyance described in this act requires the county of  
24 Warren to enter into an agreement with the New York State division of  
25 homeland security and emergency services to allow for the continued use,  
26 operation and maintenance of a state-owned antenna and communication  
27 equipment on and within a building, commonly known as 5 Fox Farm Road,  
28 located within such conveyance.

29 § 7. This act shall take effect immediately.